

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM06
HON. JUDGE Megan L. Wagner

Date: 07/08/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	Townes – Elder Abuse (2026 – 01544367)	Motion for Fees – Miles Giffen Respondent Miles Giffin’s Amended Motion for Attorneys’ Fees (ROA 41) is GRANTED as set forth below. Pursuant to Welfare & Institutions Code section 15657.03(t) and Code of Civil Procedures sections 1032 and 1033.5, Respondent, as prevailing party, seeks an award of \$4,680.00 in fees. Petitioner Karen Townes filed a Request for an Elder Abuse Restraining Order against Miles Giffin and a separate request against his wife, Amanda Giffin. The two requests were heard together on March 17, 2026. Following the presentation of evidence, the court found Petitioner had not met her burden and denied the restraining orders without prejudice. As the prevailing party, Miles Giffin now seeks an award of attorneys’ fees. Fees and costs on Requests for Elder of Dependent Adult Restraining Order Allowing Contact (EA-300) are governed by Welfare & Institutions Code section 15657.03(t), which reads in full: “The prevailing party in an action brought under this section may be awarded court costs and attorney’s fees, if any.” (Emphasis added.) A “prevailing party” includes “the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Code of Civ. Proc., § 1032.) As set forth in section 15657.03(t), costs and fees “may” be awarded to a prevailing party. “The use of the word ‘may’ denotes a discretionary choice.” (<i>Tucker v. Pacific Bell Mobile Services</i> (2010) 186 Cal.App.4th 1548, 1561.) Here, the court awards fees to Miles Giffin in the amount of \$3,240.00 (7.2 hours at \$450 per hour). Respondent is directed to give notice.
		Motion for Fees – Amanda Giffen

2	Townes – Elder Abuse (2026 – 015443671)	Respondent Amanda Giffin’s Amended Motion for Attorneys’ Fees (ROA 41) is GRANTED as set forth below. Pursuant to Welfare & Institutions Code section 15657.03(t) and Code of Civil Procedures sections 1032 and 1033.5, Respondent, as prevailing party, seeks an award of \$6,435.00 in fees. Petitioner Karen Townes filed a Request for an Elder Abuse Restraining Order against Amanda Giffin and a separate request against her husband, Miles Giffin. The two requests were heard together on March 17, 2026. Following the presentation of evidence, the court found Petitioner had not met her burden and denied the restraining orders without prejudice. As the prevailing party, Amanda Giffin now seeks an award of attorneys’ fees. Fees and costs on Requests for Elder of Dependent Adult Restraining Order Allowing Contact (EA-300) are governed by Welfare & Institutions Code section 15657.03(t), which reads in full: “The prevailing party in an action brought under this section may be awarded court costs and attorney’s fees, if any.” (Emphasis added.) A “prevailing party” includes “the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Code of Civ. Proc., § 1032.) As set forth in section 15657.03(t), costs and fees “may” be awarded to a prevailing party. “The use of the word ‘may’ denotes a discretionary choice.” (<i>Tucker v. Pacific Bell Mobile Services</i> (2010) 186 Cal.App.4th 1548, 1561.) Here, the court awards fees to Amanda Giffin in the amount of \$4,450.00 (9.9 hours at \$450 per hour). Respondent is directed to give notice.